

M/S M.D. Ice And Cold Storage v. Executive Engineer (Prescribed Authority) DVVNL

High Court of Judicature at Allahabad · Division Bench · 18 April 2018 · Writ-C No. 14017 of 2018 · **Writ disposed of with liberty to seek Clause 6.14 instalments; recovery to proceed.**

HEADNOTE

A consumer facing a recovery certificate for electricity dues may approach the Executive Engineer for instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005 if prepared to deposit; recovery itself proceeds in accordance with law. The writ seeking sympathetic consideration of a representation was disposed of with that liberty and without staying recovery.

FACTUAL SUMMARY

M/S M.D. Ice And Cold Storage, a cold-storage consumer of Dakshinanchal Vidyut Vitran Nigam Limited, faced outstanding electricity dues for which the Executive Engineer (Prescribed Authority) had issued a recovery certificate. The consumer filed a writ petition seeking that its pending representation be considered sympathetically. The Division Bench of the Allahabad High Court heard the matter on 18 April 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment-payment-clause-6.14

HOLDING

Where a recovery certificate has issued for electricity dues, recovery proceeds in accordance with law, but a consumer prepared to deposit may approach the Executive Engineer for instalments as contemplated under Clause 6.14 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer facing a recovery certificate for electricity dues may approach the Executive Engineer for instalments under Clause 6.14 of the U.P. Electricity Supply Code, 2005 if prepared to deposit; recovery itself proceeds in accordance with law.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONSUMER WAS ENTITLED TO INSTALMENTS ON THE FACTS OF THE DUES AND RECOVERY CERTIFICATE

Left to the Executive Engineer under Clause 6.14 if the consumer is prepared to deposit ¶ 1